

HOUSE No. 2480

The Commonwealth of Massachusetts

PRESENTED BY:

David Paul Linsky

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regarding registered nurse first assistants.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 2480

By Representative Linsky of Natick, a petition (accompanied by bill, House, No. 2480) of David Paul Linsky relative to registered nurse first assistants. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2227 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regarding registered nurse first assistants.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 175 of the General Laws is hereby amended by inserting after
2 section 47AA the following section:-

3 Section 47BB. When any individual or group blanket accident and sickness insurance
4 policy and health service contract delivered, issued or renewed by an insurer or nonprofit health
5 service corporation provides for payment of surgical first assisting benefits or services on behalf
6 of individual subscribers and members within the commonwealth or all group members having a
7 principal place of employment within the commonwealth, such provision shall be construed as
8 providing for payment of a registered nurse, licensed under section 80B of chapter 112, who
9 provided such first assistant services.

SECTION 2. Chapter 176A of the General Laws is hereby amended by inserting after section 8DD the following section:-

Section 8EE. When any contract between a subscriber and the corporation under an individual or group hospital service plan delivered, issued or renewed in the commonwealth provides for the payment of surgical first assisting benefits on behalf of individual subscribers and members within the commonwealth and to all group members having a principal place of employment within the commonwealth, such provisions shall be construed as providing for payment of a registered nurse, licensed under section 80B of chapter 112, who provided such first assistant services.

SECTION 3. Chapter 176B of the General Laws is hereby amended by inserting after section 4DD the following section:-

Section 4EE. When provisions for payment for surgical first assisting benefits or services exist in any subscription certificate under an individual or group medical service agreement delivered, issued or renewed in the commonwealth, such provisions shall be construed as providing for payment of a registered nurse, licensed under section 80B of chapter 112, who provided such first assistant services.

SECTION 4. Section 4 of chapter 176G of the General Laws, is hereby amended by inserting after the word "period." in line 46, the following sentence: Such health maintenance organization contract, when providing for payment of surgical first assisting benefits or services, shall be construed as providing for payment of a registered nurse, licensed under section 80B of chapter 112, providing first assistant services

SECTION 5. (a) The department of public health shall prepare a report on the provision of services by registered nurse first assistants and its effect on the quality of care for patients. Said report shall be a compilation of data reported by hospitals licensed under chapter 111 and insurers licensed under chapters 175, 176A, 176B and 176G. Such hospitals and insurers shall collect and report data that includes, but is not limited to, nursing data describing outcomes of the registered nurse first assistant, and may consider outcome measures which differentiate between severity of patient illness, mortality and morbidity rates, adverse complications, patient and family satisfaction with nursing care, patient safety, pain management, skin integrity management, medication administration and management, patient education and discharge planning.

(b) The commissioner of public health shall prepare said report in consultation with the commissioner of insurance, the director of the board of registration in nursing, the Massachusetts Nurses Association, Massachusetts Chapter I of the Association of PeriOperative Registered Nurses and the Massachusetts Hospital Association.

(c) The department shall file said report with the house and senate committees on ways and means and the joint committee on health care financing not later than September 1, 2026.